# AITHENT INDIA HR POLICY AND RELATED PROCEDURE

## LEAVE POLICY

***Version: 2.0/2021***

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## Document Revision History

This section describes the details of changes that have resulted in the document.

| S.No | Version no | Date | Section Affected | Changes in Brief / Remarks |
|---|---|---|---|---|
| 1 | 1.0 | 01-07-2019 | | Initial version |
| 2 | 2.0 | 01-04-2021 | • Sick Leave (SL)<br>• Privilege Leave (PL)<br>• Paternity leave added | Changes updated:<br>1. Addition of 5 days Paternity Leave with effect from April 1, 2021<br>2. Carry over limit of Sick Leave (SL) has been reduced from 24 days to 12 days with effect from April 1, 2021. Staff having more than 12 days Sick Leave (SL) should utilize it before Dec 31, 2021, post that leaves more than 12 days will get lapsed.<br>3. Annual accrual limit of Privilege Leave (PL) will be capped at 18 days with effect from April 1, 2021 instead of 21 days.<br>**Updated by**: OPM<br>**Reviewed by:** Senior Management Committee<br>**Approved by**: CEO |

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## OBJECTIVE

To provide an opportunity to employees to fulfill their social obligations and to take care of exigencies.

## Scope

- **Casual Leave (CL), Privilege Leave (PL), Sick Leave (SL), Special Leave (SpL)** - All employees are eligible.
- **Maternity Leave (ML)** - Female employees must have worked for at least 80 days before the expected date of delivery, in the preceding 12 months period.
- **Paternity Leave:** Male employees at the Company are entitled to 5 days of paternity leave which will be valid up to 3 weeks from the day baby is born. An employee will be eligible to avail this leave for 2 children during his tenure with the organization. Paternity leaves should be taken in a single block of 5 continuous working days.

## APPLICABILITY

- The management reserves the right to continue/modify/suspend the process at any given time.

## NATURE OF LEAVE

### Casual Leave (CL)

7 days leave in a calendar year.

### Privilege Leave (PL)

Maximum 18 days of Privilege leave for continuous service of twelve months which shall be credited every 4 months of service (i.e.) 6 leaves per 4 months. This is to be treated as earned leave and cannot be given in advance.

### Sick Leave (SL)

Maximum 6 days of sick leave for continuous service of 12 months which shall be credited at the beginning of the calendar year.

### Maternity Leave (ML)

- Paid leave for (84 days) 12 weeks, (including the date of delivery) with a maximum limit of 6 weeks before the date of delivery. This would be available maximum twice during the service at Aithent.

- Leave for 6 weeks in case of miscarriage, following the date of miscarriage. The term miscarriage is to be interpreted as per the Maternity Benefit Act, 1961.

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- In addition to the aforesaid benefit, a leave for a further period of four weeks can be availed in the case of illness arising out of pregnancy, delivery, premature delivery, and miscarriage. (Maximum once during service with Aithent)
- All holidays/ weekly offs / festival leaves falling during the leave period shall be counted in the leave period.

**Paternity Leave**

- Paid leave for 5 days from date of delivery. This would be available maximum twice during the service at Aithent.
- All holidays/ weekly offs / festival leaves falling during the leave period shall be counted in the leave period.

**Special Leave**

Aithent, as a gesture of goodwill, entitles an employee to 5 days of special leave on the occasion of his / her marriage and this shall be applicable only once in the service career with Aithent. All holidays/ weekly offs / festival leaves falling during the leave period shall be counted in the leave period.

## CREDIT AND ENTITLEMENT

**Casual Leave**

- At the beginning of each year, the employee's casual leave account will be credited with seven days as an advance credit.
- Employees joining during the middle of the calendar year will be credited leave on pro-rata basis as per their date of joining.
- Casual Leave can be availed for half day. It can be taken up to a maximum 3 days at a single stretch.
- Casual leave cannot be availed during notice period.
- All holidays/ weekly offs / festival leaves falling during the leave period shall be counted in the leave period.
- Un-availed casual leaves at the end of the calendar year shall lapse.

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- The employee, who resigns during the calendar year and has availed casual leave in excess of entitlement, will have his excess leave adjusted against Privilege Leave, if any, or salary.

**Privilege Leave**

- The Leave account of the employees will be credited with 6 days of leave or part thereof, monthly depending on actual working days during the past 4 months.
- For availing PL, a new employee must put in four months of service.
- No advance of PL shall be applicable.
- All holidays/ weekly offs / festival leaves falling during the leave period shall be counted in the leave period.
- Privilege Leave can be accumulated up to a maximum of 72 days.
- During release of an employee from service, whether due to resignation/ termination, balance leave will be enchased, up to a maximum of 40 days. PL cannot be availed during the notice period.
- The amount payable for encashment of PL at the time of resignation/separation shall be calculated as the no. of days to be enchased ( Up to a maximum of 40 days) / 30 * Last salary drawn (Salary for the purpose shall include Basic pay as applicable from time to time.)

**Sick Leave**

- A special provision for sick leave is being incorporated to take care of exigencies towards actual illness.
- The leave credit to the sick leave account will be credited in advance by 1st January of each calendar year. Employees joining in the middle of the calendar year will have a leave credit on pro-rata basis.
- One could avail any number of sick leaves at a single stretch. However, medical certificate must be furnished as explained subsequently.
- A medical certificate from a Registered Medical Practitioner must be submitted for such leaves exceeding 3 days or more taken on the account of illness.
- Sick leaves un-availed during the calendar year, shall be carried forward to the next calendar year. Leave credit on this account shall not exceed 12 days. Any leave more than 12 days shall

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be liable to lapse automatically. At the time of separation all leave credit on this account shall automatically get lapsed.

- In case of genuine sickness, the management shall have the prerogative to allow in certain cases flexible / liberal working hours considering the recommendation of the medical authority.
- SL can be availed on pro-rata basis as per the last working day during the notice period.
- All holidays/ weekly offs / festival leaves falling during the leave period shall be counted in the leave period.

## LEAVE WITHOUT PAY

Any sanctioned leave which does not fall under any of the above categories (i.e., CL, PL, ML, SL or SpL) will be considered as Leave Without Pay unless otherwise specified by the management.

In case of overstay of any sanctioned leave and reasons for overstay not being sufficient, the period of overstay will be treated as ABSENCE and can call for disciplinary action.

## COMBINATION OF LEAVES

Casual Leave (CL) cannot be combined with Privilege Leave (PL) or Sick Leave (SL). However, Privilege Leave (PL) can be combined with Sick Leave (SL) and Special Leave. For combining Sick Leave (SL) with Privilege Leave (PL) medical certificate from a Registered Medical Practitioner must be submitted.

## COMPENSATORY OFF

An employee (including trainees/Interns/temporary Employees) may have to work on a Sunday / holiday in case of an exigency. In such a case, the employee may avail a full day's off during the following week/ as is possible but within a time frame of 3 months. For this, he / she may approach his / her reporting authority who has the discretion to sanction the same. The employee should submit online application form for availing the compensatory off. C-offs can be combined with all types of leaves. All holidays/ weekly offs / festival leaves falling during the leave period shall be counted in the leave period.

## TIME-OFF

Project Leaders and Functional Heads may in their judicious discretion allow employees a reasonable time off/ permission to come late/ go early maximum 3 days in a month. This facility/ authority should

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ideally be used keeping in view the prolonged extra effort put in by the employee concerned to meet the exigencies of work.

Leave Entitlement in case of Trainees/ Interns/ Temporary Employees

All trainees / interns / temporary employees shall have the facility to avail one day of Casual Leave (CL) for every month of service. Leaves can be accumulated and availed as and when required.

## APPLICATION PROCEDURE

To avail leave, staff have to access this URL: https://aipc.aithent.com/AIPC/ and submit the leave application, it has to be done prior to proceeding on leave.

### Casual Leave

The online leave application form should be submitted by employee and approved by the reporting manager viz. PL/ML, departmental head, or functional head, as is applicable, at least 24 hours in advance. However, in exceptional circumstances, he/she may inform the reporting authority and apply for same within 48 hours of returning to duty.

### Sick Leave

Employees ought to inform their reporting manager/ HR about their illness. The online leave application form must be submitted by employee and approved by the reporting manager viz. PL/ML, departmental head or functional head, as is applicable, should be submitted to HR within 48 hours of returning to duty. Moreover, employees on sick leave should inform through telephone to their respective PL/ML/Dept Head and HR regarding their absence.

### Privilege Leave / Special Leave

- The sanctioning authority for PL is the reporting manager.

### Maternity Leave

- Intimation to this effect should be made to the HR at the earliest and at least within 3 months of pregnancy.
- Prior approval necessary of at least 30 days from the date of commencement of leave along with a certificate issued by a Registered Medical Practitioner indicating expected date of delivery.

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- The sanctioning authority for Maternity Leave will be the HR after receiving recommendation from reporting authority.

**Paternity Leave**

- Prior approval necessary of at least 15 days from the date of commencement of leave along with a certificate issued by a Registered Medical Practitioner indicating birth of the child.
- The sanctioning authority for Paternity Leave is the reporting manager.

**Leave without pay.**

- The online leave application should be submitted by employee and approved by the reporting manager viz. PL/ML, departmental head, or functional head, at least 24 hours in advance. However, in exceptional circumstances, he/she may inform the reporting manager and apply for same within 48 hours of returning to duty.
- If an individual has to proceed on the said leave for a period of more than 1 week, approval has to be sought from the HR. However, the application should be sanctioned at least 15 days in advance.
- In case of exigency, HR would be the final authority to sanction or not sanction such leave based on the reporting manager's recommendation.

**Time-Off**

- The leave application form should be submitted to HR in advance only after recommendation by the concerned PL/reporting authority and also prior sanction by the concerned GL/Functional Head. In the event of written communication not coming to HR, it shall be assumed that the person concerned is on leave.

## YARDSTICK FOR DEDUCTIONS

As a result of daily MIS being exchanged by the HR and the Project Leaders / Departmental Heads, invariably cases of absenteeism are observed i.e., absenting from duty without any prior information. The other cases could be that of late coming, failure to sign the attendance cards, overstaying leave etc. To inculcate a sense of discipline, penal deductions shall be applicable from the pay and allowances @

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1/2 day's pay for every single default over a total of 3 defaults. In case of habitual offenders, disciplinary action also may be initiated as deemed fit.

## LIST OF HOLIDAYS

A list of holidays will be circulated at the end of each year for the subsequent calendar year by HR which shall incorporate the national / statutory holidays and other festival leaves.

## NOTE

All employees are required to ensure that they submit online leave application and get it approved by their reporting manager well in time as the salaries shall be prepared based on those leave application(s) and attendance records available at the time of computation of salaries. No request for correction of salaries shall be entertained later. Any employee who is deputed on an assignment abroad should also fill the online leave application for any leave taken. All consultants deployed overseas will inform HR about any leave taken during their stay overseas through email.

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